CONFIDENTIALITY AGREEMENT

This CONFIDENTIALITY AGREEMENT (this "*Agreement*"), is dated as of August 8th, 2024, by and between Black Hawk Acquisition Corporation, a Cayman Islands exempted company ("*SPAC*"), and INSTINCT BROTHERS Co., Ltd., a Japan Company ("*Company*").

WHEREAS, SPAC and the Company are engaging in discussions about a possible negotiated purchase, merger, or other such transaction involving the SPAC's securities (the "***Transaction***") between SPAC or its affiliates, on the one hand, and the Company or its subsidiaries, on the other hand, and in connection with evaluating the Transaction, each party (in such capacity, the "***Disclosing Party***"), directly or indirectly through the Disclosing Party's Representatives (as defined below), may disclose to the other party (in such capacity, the "***Receiving Party***") or the Receiving Party's Representatives certain information relating to the Disclosing Party or its affiliates which is non-public, confidential or proprietary.

NOW, THEREFORE, in consideration of the mutual covenants contained herein, and for other good and valuable consideration, the sufficiency of which is hereby acknowledged, the parties hereto agree as follows:

1. Confidential Information. The term "***Confidential Information***" shall mean, with respect to the applicable Disclosing Party, all confidential, proprietary and non-public information (whether written, oral or electronic communications) regarding the Disclosing Party or its affiliates furnished by or on behalf of the Disclosing Party to the Receiving Party or its Representatives in connection with the Receiving Party's evaluation, negotiation, financing, implementation or consummation of the Transaction, which information is (a) clearly marked as "confidential" or with a similar designation, or (b) if disclosed orally or otherwise than in writing, is identified as confidential and/or proprietary at the time of disclosure by the Disclosing Party. Information communicated orally or otherwise than in writing, shall only be considered Confidential Information if such information is designated as being confidential at the time of disclosure (or promptly thereafter) and is reduced in writing and identified to the Receiving Party as being Confidential Information. Confidential Information will not, however, include information which (i) is or becomes publicly available other than as a result of a disclosure by the Receiving Party or its Representatives in violation of this Agreement, (ii) is or becomes available to the Receiving Party or its Representatives from a third party which, to the actual knowledge of the Receiving Party, is not bound by confidentiality obligations to the Disclosing Party with respect to such information, (iii) is known to the Receiving Party or its Representatives prior to disclosure by the Disclosing Party or its Representatives or (iv) is or has been independently developed by the Receiving Party and/or its Representatives without use of any Confidential Information furnished to it by or on behalf of the Disclosing Party. The term "***Representatives***" with respect to any person shall mean such person's affiliates and its and its affiliates' respective directors, managers, officers, employees, consultants, advisors, shareholders, agents and other representatives, and in the case of SPAC, its actual and potential financing sources for the Transaction; provided, that the obligations of the Receiving Party for its Representatives hereunder with respect to the use and disclosure of Confidential Information shall only include those Representatives who actually receive Confidential Information on its behalf in connection with this Agreement.

2. Confidentiality of Information. The Receiving Party (i) will keep the Confidential Information of the Disclosing Party confidential and will not (except as required by applicable law, regulation, Securities and Exchange Commission ("***SEC***") or stock exchange requirement or legal process ("***Legal Requirement***"), and only after compliance with paragraph 4 below), without receipt of the Disclosing Party's prior written consent, disclose to any person any Confidential Information (except as described herein), and (ii) will not use any Confidential Information other than in connection with its evaluation, negotiation, financing, implementation or consummation of the Transaction. The Receiving Party further agrees to disclose the Confidential Information only to its Representatives who reasonably

need to know the Confidential Information for the purpose of evaluating, negotiating, financing, implementing or consummating the Transaction, and who are informed of the confidential nature of the Confidential Information and have an obligation of confidentiality to the Receiving Party with respect thereto. Notwithstanding anything herein to the contrary, each party recognizes that the other party or its Representatives may in the future develop or acquire products or services related to or similar to the subject matter of Confidential Information disclosed under this Agreement. The terms of confidentiality under this Agreement shall not be construed to limit the right of either party or its Representatives to directly or indirectly independently develop or acquire products or services without use or disclosure of the other party's Confidential Information in violation of this Agreement.

3. Confidentiality of Transaction. Without receipt of the prior written consent of the other party, neither party nor any of their respective Representatives will (except as required by Legal Requirement, and only after compliance with paragraph 4 below) disclose to any person (other than its Representatives who reasonably need to know such information for the purpose of evaluating, negotiating, financing, implementing or consummating the Transaction, and who are informed of the confidential nature of such information and have an obligation of confidentiality to such party with respect thereto) any information regarding a possible Transaction, including (i) the existence of this Agreement, (ii) that any investigations, discussions or negotiations are taking or have taken place concerning a possible Transaction, including the status thereof or the termination of such discussions or negotiations, or (iii) any of the terms, conditions or other facts with respect to any such possible Transaction or its consideration of a possible Transaction (collectively, "***Transaction Information***").

4. Legally Required Disclosure. In the event that the Receiving Party or any of its Representatives are required by Legal Requirement to disclose any of the Confidential Information of the Disclosing Party or any Transaction Information, the Receiving Party or its Representative, as applicable, may, without violation of this Agreement, disclose such Confidential Information or Transaction Information, provided that the Receiving Party will, to the extent reasonably practicable and permitted by Legal Requirement, notify the Disclosing Party promptly in writing so that the Disclosing Party may seek a protective order or other appropriate remedy or, in the Disclosing Party's sole discretion, waive compliance with the terms of this Agreement, and the Receiving Party will cooperate (at the Disclosing Party's sole expense) in such efforts as reasonably requested by the Disclosing Party. In the event that no such protective order or other remedy is obtained, or the Disclosing Party waives compliance with the terms of this Agreement, the Receiving Party and its Representatives will furnish only that portion of the Confidential Information or Transaction Information which the Receiving Party or its Representative is required to disclose by Legal Requirement. Notwithstanding the foregoing, nothing in this Agreement shall require the Receiving Party or its Representative to notify the Disclosing Party of, or obtain the Disclosing Party's consent for, any disclosure made to a bank examiner, regulatory examiner, or self-regulatory examiner in the course of such examiner's examination, inspection, or audit, and any such disclosure shall not be a breach of this Agreement, provided that such examination, inspection or audit was not specifically targeting the Disclosing Party, the Transaction, the Confidential Information or the Transaction Information.

5. No Obligation to Consummate Transaction. Each party acknowledges and agrees that neither the other party nor any of its affiliates has made any decision to pursue any Transaction and agrees that, subject to the terms of any written agreement between the parties or their respective affiliates entered into after the date of this Agreement, the other party will have the right in its sole discretion, without giving any reason therefor, at any time to terminate discussions concerning a possible Transaction or to elect not to pursue any such Transaction. In addition, each party agrees that, except for the matters specifically agreed to herein or in written agreements subsequently entered into between the parties or their respective affiliates, no contract or agreement providing for any Transaction involving the other party or any of its Representatives shall be deemed to exist, and the other party and its Representatives shall not be under any legal obligation of any kind whatsoever with respect to any Transaction by virtue of this or any other written

or oral expression, unless and until definitive written agreements with respect to such Transaction, if any, have been executed and delivered by each party or their affiliates.

6. Future Opportunities. Each party acknowledges that the other party or its Representatives may now have or may in the future have active business interests with, or invest in, competitors of such party or its Representatives and/or may invest or engage in business activities in competition with such party or its affiliates. Nothing in this Agreement shall limit the right of a party or its Representatives to directly or indirectly pursue those or any other business interests or investment opportunities, provided that it abides by the obligations of this Agreement. The occurrence or existence of such similar or competitive activities conducted by either party or its Representatives shall not constitute evidence that such party has failed to observe its obligations hereunder.

7. Right to Disclose Information. The Disclosing Party warrants that it has and will have all rights to disclose the information that will be disclosed by or on behalf of it in the framework of the discussions between the parties regarding the Transaction.

8. Non-Public Information. The Company acknowledges that U.S. securities laws and other laws prohibit any person who has material, non-public information concerning a public company from purchasing or selling any of its securities, and from communicating such information to any person under circumstances in which it is reasonably foreseeable that such person is likely to purchase or sell such securities. The Company acknowledges that the confidentiality provisions of this Agreement shall be deemed to be an agreement to keep the Confidential Information of SPAC in confidence as contemplated by Regulation FD promulgated by the SEC. In addition, the Company acknowledges and agrees that some of the Confidential Information of SPAC and Transaction Information may be considered "material non-public information" for purposes of the federal securities laws, and that the Company and its Representatives will abide by all securities laws relating to the handling of and acting upon material non-public information of or regarding SPAC.

9. Waiver Against Trust. Reference is made to the final prospectus of SPAC, dated as of March 22, 2024 and filed with the SEC (File No. 333-276857) (the "***Prospectus***"). The Company hereby represents and warrants that it has read the Prospectus and understands that SPAC has established a trust account (the "***Trust Account***") containing the proceeds of its initial public offering (the "***IPO***") and from certain private placements occurring simultaneously with the IPO (including interest accrued from time to time thereon) for the benefit of SPAC's public shareholders (the "***Public Shareholders***"), and that, except as otherwise described in the Prospectus, SPAC may disburse monies from the Trust Account only: (a) to the Public Shareholders in the event they elect to redeem their SPAC shares in connection with the consummation of SPAC's initial business combination (as such term is used in the Prospectus) (the "***Business Combination***") or in connection with an extension of its deadline to consummate a Business Combination, (b) to the Public Shareholders if SPAC fails to consummate a Business Combination within 15 months (or up to 18 or 21 months if SPAC extends such period as described in the Prospectus) after the closing of the IPO, subject to extension by an amendment to SPAC's organizational documents, (c) with respect to any interest earned on the amounts held in the Trust Account, amounts necessary to pay for any taxes or (d) to SPAC after or concurrently with the consummation of a Business Combination. For and in consideration of SPAC entering into this Agreement and discussions with the Company regarding the possible Transaction, and for other good and valuable consideration, the receipt and sufficiency of which is hereby acknowledged, the Company hereby agrees on behalf of itself and its affiliates that, notwithstanding anything to the contrary in this Agreement, neither the Company nor any of its affiliates do now or shall at any time hereafter have any right, title, interest or claim of any kind in or to any monies in the Trust Account or distributions therefrom, or make any claim against the Trust Account (including any distributions therefrom), regardless of whether such claim arises as a result of, in connection with or relating in any way to, this Agreement or any proposed or actual business relationship between SPAC or

its Representatives, on the one hand, and the Company or its Representatives, on the other hand, or any other matter, and regardless of whether such claim arises based on contract, tort, equity or any other theory of legal liability (collectively, the "***Released Claims***"). The Company on behalf of itself and its affiliates hereby irrevocably waives any Released Claims that the Company or any of its affiliates may have against the Trust Account (including any distributions therefrom) now or in the future as a result of, or arising out of, any negotiations, contracts or agreements with SPAC or its Representatives and will not seek recourse against the Trust Account (including any distributions therefrom) for any reason whatsoever (including for an alleged breach of this Agreement or any other agreement with SPAC or its affiliates). The Company agrees and acknowledges that such irrevocable waiver is material to this Agreement and specifically relied upon by SPAC and its affiliates to induce SPAC to enter into this Agreement, and the Company further intends and understands such waiver to be valid, binding and enforceable against the Company and each of its affiliates under applicable law. To the extent the Company or any of its affiliates commences any action or proceeding based upon, in connection with, relating to or arising out of any matter relating to SPAC or its Representatives, which proceeding seeks, in whole or in part, monetary relief against SPAC or its Representatives, the Company hereby acknowledges and agrees that the Company's and its affiliates' sole remedy shall be against funds held outside of the Trust Account and that such claim shall not permit the Company or its affiliates (or any person claiming on any of their behalves or in lieu of any of them) to have any claim against the Trust Account (including any distributions therefrom) or any amounts contained therein. In the event the Company or any of its affiliates commences any action or proceeding based upon, in connection with, relating to or arising out of any matter relating to SPAC or its Representatives, which proceeding seeks, in whole or in part, relief against the Trust Account (including any distributions therefrom) or the Public Shareholders, whether in the form of money damages or injunctive relief, SPAC and its Representatives, as applicable, shall be entitled to recover from the Company and its affiliates the associated legal fees and costs in connection with any such action, in the event SPAC or its Representatives, as applicable, prevails in such action or proceeding.

10. Miscellaneous.

(a) Severability. If any provision of this Agreement shall, for any reason, be adjudged by any court of competent jurisdiction to be invalid or unenforceable, such judgment shall not affect, impair or invalidate the remainder of this Agreement but shall be confined in its operation to the provision of this Agreement directly involved in the controversy in which such judgment shall have been rendered. The parties will substitute for any invalid or unenforceable provision a suitable and equitable provision that carries out, so far as may be valid and enforceable, the intent and purpose of such invalid or unenforceable provision.

(b) Assignment; Successors and Assigns. This Agreement will not be assignable or transferable by either SPAC or the Company without the prior written consent of the other, and any purported assignment or transfer without such consent shall be null and void ab initio and of no effect. Subject to the foregoing, this Agreement shall be binding upon, and shall inure to the benefit of, the parties hereto and their respective successors and permitted assigns. Nothing contained in this Agreement shall create any rights in, or be deemed to have been executed for the benefit of, any person that is not a party hereto or a successor or permitted assign of such a party.

(c) Modifications to Agreement; Waivers. No amendments or modifications of or changes to this Agreement or waiver of the terms and conditions hereof will be binding upon the Company or SPAC, unless approved in writing and signed by both the Company and SPAC. It is further agreed that no failure or delay in exercising any right, power or privilege hereunder will operate as a waiver thereof, nor will any single or partial exercise thereof preclude any other or further exercise thereof or the exercise of any right, power or privilege hereunder.

(d) Governing Law; Venue; JURY TRIAL WAIVER. This Agreement will be governed by and construed in accordance with the laws of the State of New York, without regard to the principles of conflict of laws thereof. Any action, claim, suit or other legal proceeding relating to this Agreement shall be brought exclusively in the state or federal courts located in New York County, State of New York (or any appellate courts therefrom). The parties expressly waive any objection based on personal jurisdiction, venue or forum non conveniens. EACH PARTY HEREBY IRREVOCABLY WAIVES ALL RIGHTS TO TRIAL BY JURY IN ANY ACTION, CLAIM, SUIT, PROCEEDING OR COUNTERCLAIM (WHETHER BASED ON CONTRACT, TORT OR OTHERWISE) ARISING OUT OF OR RELATING TO THIS AGREEMENT OR THE ACTIONS OF SUCH PARTY IN THE NEGOTIATION, ADMINISTRATION, PERFORMANCE AND ENFORCEMENT HEREOF.

(e) Termination. Each party's obligations hereunder with respect to Confidential Information and Transaction Information shall terminate on the first (1st) anniversary of the date of this Agreement; *provided* that all matters related thereto in respect of which a claim has been made or an action or proceeding has been instituted on or prior to such date shall survive the expiration of such period until such claim, action or proceeding is finally resolved. Notwithstanding the foregoing, the provisions of paragraph 9 shall survive indefinitely. The termination of any other agreement or business relationship between, or involving, both parties or their affiliates, shall not relieve either party of its obligations with respect to Confidential Information disclosed pursuant to this Agreement.

(f) Entire Agreement. This Agreement constitutes the full and entire understanding and agreement between the parties with regard to the subject matter of this Agreement and supersedes all prior understandings or agreements with respect thereto. If there is any inconsistency between this Agreement and the terms and conditions of any agreement that a Receiving Party or any of its Representatives must "click through" for online or electronic access to any Confidential Information, then the terms and conditions of this Agreement shall govern in all respects.

(g) Interpretation. The headings set forth in this Agreement are for convenience of reference only and shall not be used in interpreting this Agreement. In this Agreement, unless the context otherwise requires: (i) any pronoun used shall include the corresponding masculine, feminine or neuter forms, and the singular form of nouns, pronouns and verbs shall include the plural and vice versa; (ii) the term "including" (and with correlative meaning "include") shall be deemed in each case to be followed by the words "without limitation"; and (iii) the words "herein", "hereto" and "hereby" and other words of similar import shall be deemed in each case to refer to this Agreement as a whole and not to any particular portion of this Agreement. As used in this Agreement, the term: (x) "person" shall refer to any individual, corporation, partnership, trust, limited liability company or other entity or association, including any governmental or regulatory body, whether acting in an individual, fiduciary or any other capacity; and (y) "affiliate" shall mean, with respect to any specified person, any other person or group of persons acting together that, directly or indirectly, through one or more intermediaries controls, is controlled by or is under common control with such specified person (where the term "control" (and any correlative terms) means the possession, direct or indirect, of the power to direct or cause the direction of the management and policies of such person, whether through the ownership of voting securities, by contract or otherwise

(h) Counterparts. This Agreement may be executed in any number of counterparts, including by facsimile, pdf or other electronic document transmission, each of which shall be an original, but all of which together shall constitute one instrument.

[Remainder of Page Intentionally Left Blank; Signature page follows]

IN WITNESS WHEREOF, the parties hereto have caused this Confidentiality Agreement to be executed and delivered as of the date first written above.

Black Hawk Acquisition Corporation

By:______________________________
Name:
Title:

INSTINCT BROTHERS Co., Ltd.

By:______________________________
Name: TOMOKI NAGANO
Title: Chairman & CEO

[Signature Page to Confidentiality Agreement]